



File No.: EXP202306361

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) received a notification by certified mail regarding the compensation for an expropriation in which he is requested to provide various documentation, such as a simple note of the property, a death certificate of the usufructuary, or a copy of his ID.

Due to his disagreement, as he states that these documents are not required according to the provisions of Article 53.d of Law 39/2015 since they are already on file with public administrations, and that he has also received the notification by postal mail despite having reiterated his refusal to the use of postal addresses, designating the electronic address as the only valid means of notification, he submitted a written request to the CONFEDERACION HIDROGRAFICA DEL GUADALQUIVIR (hereinafter, the respondent) requesting:

“1.- A copy of the personal data held by this administration, as well as its origin, processing, and purposes for which it has been collected. He requests a copy of the documentation that certifies the origin of the same, given that according to your notification, you understand that I am the owner of a specific plot and have the data of it.

2.- A response to the opposition to the use of his postal data made to the Data Protection Officer of this Confederation on October 18, 2021, which has been systematically ignored.

3.- A copy of the regulations that require the submission of copies of documents existing in public administrations, such as a copy of the ID, death certificates, or simple notes from the Property Registry, contrary to what is established in Law 39/2015 of the Common Administrative Procedure of Public Administrations.”

SECOND: On March 27, 2023, a complaint was filed with this Agency by the claimant before the Council of Transparency and Data Protection of Andalusia, and forwarded by said Council, for not having duly attended to his rights.

The claimant provided the registered writings to exercise his rights.

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- On 10/18/2021, the claimant sent a letter to the data protection officer of the respondent to exercise the rights of access and deletion.

- On 02/08/2023, the claimant exercised the right of access before the respondent. In the submitted letter, he stated that he had communicated several times that he opposed the use of his postal address for notification purposes, designating the electronic address as the only valid means of notification. At the same time, he indicated that the data protection officer had not responded to the letter submitted in 2021.

He claims that his requests have not been addressed.

THIRD: After analyzing the documents provided in the aforementioned complaint and the concurrent circumstances, no rational indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection were found, therefore, in accordance with the provisions of Article 65.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection resolved to dismiss it.

FOURTH: Dissatisfied with the resolution issued, the claimant filed a motion for reconsideration, which, after the corresponding instruction, the Director, on July 24, 2023, resolved to accept so that the complaint would follow the procedure established in Article 65 of the LOPDGDD.

FIFTH: As a result of the acceptance of the aforementioned Motion for Reconsideration, the present rights procedure was initiated, and on July 27, 2023, the complaint was forwarded to the respondent to present the allegations they deemed appropriate within ten working days, stating, in summary, that on March 27, 2023, they sent a response letter to those submitted by the claimant on February 8 and 21, as well as on March 16, 2023, attaching a copy of the response letter.

In that response, they indicate, as far as this procedure is concerned, that "(...) the Confederación Hidrográfica del Guadalquivir, O.A. acts as the data controller of the personal data contained in this expropriation file. This data is obtained in compliance with the legal obligation established by the Law of December 16, 1954, on compulsory expropriation (LEF), with the purpose of managing the expropriation files of which the Organization is a beneficiary. Furthermore, this data will be retained indefinitely, as long as no request for permanent deletion is made, and will not be transferred to third parties for purposes other than those for which they were requested, unless legally obligated. (...)" In order to manage the expropriation file with the affected parties, and in compliance with the provisions of Article 3 of the LEF, a descriptive and graphic cadastral certificate of the aforementioned plot is obtained, (...). At the same time, a simple informative note of the property is provided by the Property Registry No. 1 of (...).

FOURTH. – In accordance with the provisions of Article 14 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations,

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You may choose, at any time, whether to communicate with Public Administrations for the exercise of your rights and obligations through electronic means or not, which may be modified at any time.

Therefore, in light of the opposition to the use of your postal data and overcoming the operational difficulties, notifications will henceforth be carried out through electronic means, in accordance with the provisions of Article 43 of the aforementioned legal text. For this reason, in order to proceed with the payment of any amounts that may arise from the expropriation procedure, you are required to provide the documentation indicated in the second section.

In the event that such documentation has been provided in a procedure different from the one at hand, you are required to provide the identifying data of the same, the time of submission, and the administrative body before which it was submitted, as well as the procedure, in order to allow for its location. If these are provided, a request will be made for them, for which, unless there is an express opposition and in accordance with Article 28.3 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, it will be presumed that such consultation has been authorized."

THIRD: After examining the document submitted by the responding party, it is forwarded to the claiming party, so that, within ten working days, they may formulate any allegations they deem appropriate, failing to submit allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

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Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

The procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, provides that:

“When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Right of Access

The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR, as well as in Articles 13 to 18 of the LOPDGDD.

Regarding the right of access of data subjects to obtain personal data “concerning them” from the data controller, Articles 12 and 15 of the GDPR, as well as Articles 12 and 13 of the LOPDGDD, are of particular application, all of which must be interpreted within the framework established in Recitals 59 to 64 of the GDPR.

Thus, the main content of the right and its scope or content is established in Article 15 of the GDPR, which states the following:

“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;

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c) the recipients or categories of recipients to whom the personal data have been or will be communicated, in particular recipients in third countries or international organizations;

d) where possible, the intended retention period for the personal data or, if not possible, the criteria used to determine that period;

- e) the existence of the right to request from the controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject, or to object to such processing;
 - f) the right to lodge a complaint with a supervisory authority;
 - g) when the personal data have not been obtained from the data subject, any available information about their source;
 - h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.
2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.
3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.
4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the data subject lies with the controller.

The communication addressed to the data subject in response to their request must be expressed in a concise, transparent, intelligible, and easily accessible form, using clear and plain language.

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For its part, Article 13 of the LOPDGDD establishes certain guidelines for considering the right to access personal data to be fulfilled by the data controller in specific cases, specifying the following:

“1. The right of access of the data subject shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679. When the controller processes a large amount of data concerning the data subject and the data subject exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the data subject specify the data or processing activities to which the request refers before providing the information.

2. The right of access shall be deemed granted if the data controller provides the data subject with a remote, direct, and secure access system to the personal data that ensures, on a permanent basis, access to all of it. For these purposes, the communication by the controller to the data subject of how they can access this system shall suffice to consider the request for the exercise of the right to be fulfilled.

However, the data subject may request from the controller the information referred to in the aspects provided for in Article 15.1 of Regulation (EU) 2016/679 that is not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access may be considered repetitive if exercised more than once within a period of six months, unless there is a legitimate reason for it.

4. When the data subject chooses a means other than that offered which incurs disproportionate costs, the request will be considered excessive, and the data subject will bear the excess costs that their choice entails. In this case, the controller shall only be required to satisfy the right of access without

undue delay.”

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

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IV

Right to Object

Article 21 of the GDPR states that

“1. The data subject shall have the right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them based on the provisions of Article 6, paragraph 1, letters (e) or (f), including profiling based on such provisions. The data controller shall cease processing the personal data unless they demonstrate compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.

2. When the processing of personal data is for direct marketing purposes, the data subject shall have the right to object at any time to the processing of personal data concerning them, including profiling to the extent that it is related to such marketing.

3. When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.

4. At the latest at the time of the first communication with the data subject, the rights indicated in paragraphs 1 and 2 shall be explicitly mentioned to the data subject and shall be presented clearly and separately from any other information.

5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the data subject may exercise their right to object by automated means using technical specifications.

6. When personal data are processed for scientific or historical research purposes or for statistical purposes in accordance with Article 89, paragraph 1, the data subject shall have the right, on grounds relating to their particular situation, to object to the processing of personal data concerning them, unless the processing is necessary for the performance of a task carried out for reasons of public interest.”

V

Conclusion

The rights procedure is initiated as a result of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the same will be analyzed and assessed, excluding the rest of the issues raised, such as the request for “a copy of the regulations that require submission to this administration of copies of documents existing in public administrations (...)”

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In this case, and taking into account the provisions of the previous paragraph, from the examination of the documentation provided, it has been established that the claiming party requested

- Opposition to the use of their postal data:

In the response issued by the responding party, they indicate that “(...) henceforth, notifications will be made through electronic means, in accordance with the provisions of Article 43 of said legal text. (...)” Consequently, it is appropriate to dismiss the claim regarding the right of opposition.

Notwithstanding the above, from the statements of the claiming party, it seems to be inferred that their intention is not so much the exercise of the right of opposition but the communication to the responding party of their desire to receive notifications via electronic means and not postal.

- “A copy of the personal data held by this administration, as well as its origin, processing, and purposes for which it has been collected, should be sent to me. I request a copy of the documentation that certifies the origin of the same, given that according to your notification, you understand that I am the owner of a specific parcel and have the data of it.”

The responding party replied indicating that the data is included in the expropriation file, and that this data is obtained in compliance with the legal obligation established by the Law of December 16, 1954, on compulsory expropriation (LEF), with the purpose of managing the expropriation files of which the Agency is a beneficiary. They also inform that this data will be retained indefinitely, as long as a permanent deletion is not requested and will not be transferred to third parties for purposes other than those for which they were requested, except for legal obligation.

Furthermore, in order to manage the expropriation file with the affected persons, and in compliance with the provisions of Article 3 of the LEF, a descriptive and graphic cadastral certificate of the parcel subject to the file is obtained, and a simple informative note of the property is provided by the corresponding Property Registry.

Upon examining the aforementioned response, it cannot be considered that the right of access has been addressed.

In this regard, it is appropriate to apply the provisions of the European Data Protection Board (EDPB), in the Guidelines 1/2022, adopted on March 28, 2023, which approves the Application Guide of Article 15 of the GDPR, regarding the Right of Access of the Data Subject, which indicates that

“51.

Furthermore, the data controller must assess whether the requests made by the requesting individuals refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally request ‘information about the data processed concerning them,’ the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish, regarding the specified data, to access the source or origin of the personal data or the specified storage period. In such a case, the data controller may limit their response to the specific information requested.

3.1.2 Form of the request

52.

As previously noted, the GDPR does not impose any requirements on data subjects regarding the form of the request for access to personal data. Therefore, there are, in principle, no requirements under the GDPR that data subjects must observe when choosing a communication channel through which they contact the data controller.”

Furthermore, the Judgment of the Court of Justice (Third Chamber) of May 7, 2009 [CJEU Rijkeboer 7.5.2009 — Case C-553/07] states that

“51 The aforementioned right of access is indispensable for the data subject to exercise the rights provided for in Article 12, letters b) and c), of the Directive, namely, where applicable, when the processing does not comply with the provisions thereof, to obtain from the data controller the rectification, erasure, or blocking of the data [letter b)], or to notify the third parties to whom the data have been communicated of any rectification, erasure, or blocking carried out, if this is not impossible

or does not involve a disproportionate effort [letter c)].

52 The right of access is also a necessary condition for the data subject to exercise the right to object to the processing of their personal data, as provided for in Article 14 of the Directive, as it is for the right to seek compensation for damages suffered, as provided for in Articles 22 and 23 thereof.”

On the other hand, regarding the right to obtain a copy, the Judgment of the Court of Justice of the European Union (First Chamber) of May 4, 2023 states:

“1) Article 15, paragraph 3, first sentence, of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons in relation to the processing of personal data...

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personal data and the free movement of such data, and by which Directive 95/46/EC (General Data Protection Regulation) is repealed, must be interpreted to mean that the right to obtain from the data controller a copy of the personal data subject to processing implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases that contain, among others, such data, if the provision of such a copy is essential to allow the data subject to effectively exercise the rights conferred by that Regulation. It should also be emphasized that the rights and freedoms of third parties must be taken into account in this regard.

2) Article 15, paragraph 3, third sentence, of Regulation 2016/679 must be interpreted to mean that the concept of "information" it encompasses refers exclusively to the personal data of which the data controller must provide a copy in accordance with the first sentence of that paragraph.

Therefore, according to the interpretation of the right of access made by the Court of Justice of the European Union, as well as what is established in the aforementioned Guidelines 1/2022, the claiming party has exercised the right of access regarding the personal data that concerns them, and the responding party must provide the claiming party with their right of access under the terms provided in the GDPR.

It is then appropriate to address the substance of the matter. In this regard, the provisions of the aforementioned Guidelines 1/2022 apply, whose point 4.2 specifies the scope of the personal data included in the right of access, specifically mentioning the data that concerns the data subject, warning against the danger of making a "too restrictive" interpretation to automatically deny access.

These Guidelines establish the following (the underlining is ours):

“4.2 The personal data to which the right of access refers

In accordance with Article 15, paragraph 1 of the GDPR, ‘the data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and to the following information’ (the underlining is ours).

Several elements can be inferred from paragraph 1 of Article 15 of the GDPR. In the paragraph, it expressly refers to ‘the personal data concerning them’ (4.2.1), which ‘is being processed’ (4.2.2) by the data controller:

4.2.1. ‘personal data concerning them’

The right of access can only be exercised with respect to the personal data related to the data subject requesting access or, where applicable, by an authorized person or representative (see section 3.4). There are also situations where the data does not have a link to the person exercising the right of access, but to another person. However, the data subject only has the right to personal data relating to themselves, excluding data that exclusively concerns another person.

Nevertheless, the classification of data as personal data relating to the data subject does not depend on whether such personal data also refers to another person. Therefore, it is possible for personal data to refer to more than one person at the same time. This does not automatically mean that access is granted to personal data also related to another person, as the data controller must comply with Article 15, paragraph 4, of the GDPR. The words ‘personal data concerning them’ should not be interpreted in a ‘too restrictive’ manner by data controllers, as already stated by the Article 29 Working Party regarding the right to data portability.”

Consequently, according to the EDPB, the highest European authority in this matter, the right of

access under Article 15 of the GDPR goes beyond requesting one's own personal data - limited to the data subject - and extends to those that "concern them."

Therefore, it is appropriate to uphold the present claim regarding the right of access.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge the CONFEDERACION HIDROGRAFICA DEL GUADALQUIVIR with NIF Q4117001J, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions set out in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

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SECOND: DISMISS the claim made by Mr. A.A.A. against the CONFEDERACION HIDROGRAFICA DEL GUADALQUIVIR regarding Article 17 of the GDPR.

THIRD: NOTIFY this resolution to Mr. A.A.A. and to the CONFEDERACION HIDROGRAFICA DEL GUADALQUIVIR.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the Audiencia Nacional, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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